

Federal Contingency Fund Act, 2017

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Federal Contingency Fund Act, 2074 (2017)

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Act Number 9 of the year 2074 (2017)

An Act Made to Provide for the Amendment and Codification of the Laws relating to the Contingency Fund

Preamble: Whereas it is desirable to amend and codify the existing laws relating to the establishment and operation of the Contingency Fund and to make them timely;

Now, therefore, the Legislature-Parliament, pursuant to Clause (1) of Article 296 of the Constitution of Nepal, has enacted this Act. 1. Short Title and Commencement: (1) This Act may be cited as the "Federal Contingency Fund Act, 2074 (2017)."

(2) This Act shall commence immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Contingency work" means emergency work to be carried out immediately in special circumstances created due to natural or non-natural disasters, including earthquakes, floods, landslides, fires, epidemics, or other emergent or unforeseen causes.

(b) "Prescribed or as prescribed" means prescribed or as prescribed in the rules made under this Act. 3. Establishment of the Federal Contingency Fund: A Fund is hereby established under the name "Federal Contingency Fund."

4. Amount Deposited in the Federal Contingency Fund: An amount of One Crore Rupees has been withdrawn from the Federal Consolidated Fund and such amount has been deposited in the Federal Contingency Fund. 5. Power to Increase Amount of the Federal Contingency Fund: The Government of Nepal may, by publishing a notice in the Nepal Gazette, increase the amount remaining in the Federal Contingency Fund as necessary. 6. Operation of the Federal Contingency Fund: The operation of the Federal Contingency Fund shall be as prescribed. 7. Power to Expend Amount from the Federal Contingency Fund: The Government of Nepal may expend the amount from the Federal Contingency Fund for contingency works. 8. Amount Expended to be Refunded: The amount expended by the Government of Nepal from the Federal Contingency Fund pursuant to Section 7 shall be refunded from the amount appropriated for each fiscal year according to the Appropriation Act. 9. Power to Make Rules: The Government of Nepal may make necessary rules for the implementation of this Act. 10. Repeal and Saving: (1) The Contingency Fund Act, 2016 (1960) is hereby repealed.

(2) All acts and proceedings done under the Contingency Fund Act, 2016 (1960) shall be deemed to have been done under this Act.

(3) The amount remaining in the Contingency Fund established under the Contingency Fund Act, 2016

(1960) shall, after the commencement of this Act, automatically transfer to the Federal Contingency Fund.